

1. UK Spouse Visa Requirements and Eligibility Criteria

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UK Spouse Visa: Eligibility, Requirements & How to Apply

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The UK Spouse Visa is available to individuals who are married to a British or Irish citizen, a person settled in the UK (i.e. someone who holds indefinite leave to remain or settled status), a person with pre-settled status under the EU Settlement Scheme, a holder of a Turkish Businessperson or Turkish Worker visa, or an individual who has been granted refugee status or humanitarian protection in the UK. This visa enables an applicant to enter or remain in the UK in order to live with their spouse. An application may also be made where the sponsoring spouse is currently outside the UK but intends to return and reside in the UK with the applicant.

The UK Spouse Visa provides a pathway to settlement, allowing applicants to apply for indefinite leave to remain after completing five years of continuous

1. UK Spouse Visa Requirements and Eligibility Criteria

In order to qualify for a UK Spouse Visa, you will need to satisfy UK Visas and Immigration that you meet the following requirements:

- Your partner is a British or Irish citizen, settled in the UK (i.e. holds indefinite leave to remain or settled status), in the UK with pre-settled status under the EU Settlement Scheme, a holder of a Turkish Businessperson or Turkish Worker visa or someone granted refugee status or humanitarian protection in the UK;
- Both you and your partner are over the age of 18;
- You and your partner are not within a prohibited degree of relationship;
- You and your partner have met in person;
- You and your partner are legally married in a marriage that is recognised in the UK;
- Your relationship is genuine and subsisting;
- You and your partner intend to live together permanently in the UK;
- Any previous relationship or either partner has broken down permanently;
- You satisfy a financial requirement;
- There is adequate accommodation for you and any dependents;
- You speak and understand English to a required level.

The exact requirements you will need to satisfy in order to qualify for a UK Spouse Visa may vary depending on your personal circumstances. You may wish to seek expert legal advice to ensure that your application complies with the Immigration Rules and Home Office guidance.

To discuss your UK Spouse Visa application with one of our immigration barristers, contact our UK Spouse Visa lawyers on 0203 617 9173 or complete our enquiry form below.

2. Who Can Sponsor a UK Spouse Visa Application?

- Be a British or Irish citizen in the UK, or intending to return to the UK with you; or
- Hold indefinite leave to remain or settled status under the EU Settlement Scheme; or
- Have pre-settled status under Appendix EU; or
- Have limited leave to remain as a Turkish Businessperson or Turkish Worker under Appendix ECAA; or
- Have been granted refugee status or humanitarian protection in the UK.

A British citizen sponsor may either be present and settled in the UK or intending to return with you to the UK to live together. Similarly, a person with indefinite leave to remain or permanent residence may sponsor your application even if they are returning to the UK at the same time as you, provided they are being admitted for settlement on that occasion.

3. Minimum Age Requirement for a UK Spouse Visa

You and your partner must both be over the age of 18 on the date when you submit your Spouse Visa application.

4. Proving a Genuine Relationship for a UK Spouse Visa

The UK Spouse Visa relationship requirement has various elements to it:

- You and your partner must not be within a prohibited degree of relationship;
- You and your partner must have met in person;
- You and your partner must be legally married;
- Your relationship must be genuine and subsisting;
- You and your partner must intend to live together permanently in the UK;
- Any previous relationship must have broken down permanently.

Read about some of our [Spouse, Partner and Family Visa Success Stories](#).

5. Spouse Visa Rules on Prohibited Family Relationships

In order to qualify for a UK Spouse Visa, you and your spouse must not be within a prohibited degree of relationship as defined in the Marriage Act 1949 and the

ways:

- Adoptive child
- Adoptive parent
- Child
- Former adoptive child
- Former adoptive parent
- Grandparent
- Grandchild
- Parent
- Parent's sibling
- Sibling
- Sibling's child

In this list 'sibling' means a brother, sister, half-brother or half-sister.

A marriage between a person and any person in the following list will not qualify for a spouse visa until both parties are aged 21 or over, and provided that the younger party has not at any time before attaining the age of 18 been a child of the family in relation to the other party:

- Child of former civil partner
- Child of former spouse
- Former civil partner of grandparent
- Former civil partner of parent
- Former spouse of grandparent
- Former spouse of parent
- Grandchild of former civil partner
- Grandchild of former spouse

6. UK Spouse Visa: Face-to-Face Meeting Requirement

You and your spouse must have met in person. The requirement to have 'met' means that you must be able to demonstrate a face-to-face meeting which

UK spouse visa.

7. Marriage Validity Rules for a UK Spouse Visa Application

In order to qualify for a UK Spouse Visa, you and your partner will need to be legally married in a marriage that is recognised under UK law.

Recognition of Marriages Conducted in the UK

To be recognised as valid for UK immigration purposes, a marriage that takes place in the UK must be monogamous and conducted in accordance with the legal formalities set out in the Marriage Act 1949 (as amended), the Marriage (Scotland) Act 1977, or the Marriage (Northern Ireland) Order 2003.

This means that notice of intention to marry must have been properly given, the ceremony must have taken place at a venue authorised for marriages, and it must have been conducted by – or in the presence of – a person legally authorised to register marriages. In England and Wales, both parties must have been at least 18 years old at the time of the marriage. In Scotland and Northern Ireland, the minimum age is 16 (with parental consent required for those aged 16 or 17 in Northern Ireland).

A marriage conducted in the UK must be evidenced by an official marriage certificate issued by the relevant civil or religious authority.

Recognition of Overseas Marriages

A marriage that takes place outside the UK will be recognised for the purposes of a UK Spouse Visa application if:

- The type of marriage is recognised in the country where it was performed;
- The marriage was lawfully conducted in accordance with the legal formalities of that country;
- There was no legal impediment under the law of either party's country of domicile at the time of the marriage; and
- Any previous marriages of either party had been properly terminated through divorce before the new marriage took place.

An **overseas marriage** must be evidenced by a valid marriage certificate (or a legally recognised equivalent) issued by the relevant national authority.

degrees of relationship), and the legal termination of any prior marriages.

However, if your overseas marriage is legally recognised in the country where it took place and meets the above conditions, it will generally be accepted by UK Visas and Immigration for immigration purposes.

- **Overseas Marriages & Civil Partnerships in UK Visa Applications**

8. How to Prove a Genuine and Subsisting Relationship for a Spouse Visa

In order to qualify for a UK Spouse Visa, you will need to demonstrate to UK Visas and Immigration that your relationship with your partner is both genuine and subsisting. The **genuine and subsisting relationship** requirement applies at every stage of the UK Spouse Visa route, including initial entry clearance, further leave to remain, and indefinite leave to remain.

The Home Office assesses whether a relationship is genuine and subsisting on a case-by-case basis, taking into account the individual circumstances of each applicant and all available evidence. There is no single document that will suffice; instead, applicants are expected to present a consistent and credible body of evidence demonstrating the nature and durability of their relationship.

Factors Considered by the Home Office When Deciding Whether a Relationship Is Genuine and Subsisting

Factors which may be considered by the Home Office when determining whether your relationship is genuine and subsisting include:

- Whether you and your spouse are in a current, long-term relationship;
- Whether you and your spouse have been or are now living together;
- Whether you and your spouse have children together (biological, adopted or step-children) and shared responsibility for them;
- Whether you and your spouse share financial responsibilities;
- Whether you and your spouse have visited the other's home country and family;

- Whether you and your spouse have made definite plans concerning the practicalities of living together in the UK.

or arrange a home visit.

Supporting Documents for a Genuine and Subsisting Relationship

The Home Office will expect to see significant evidence of shared life commitments, regular contact, signs of affection and companionship, emotional support, and an abiding interest in each other's welfare and wellbeing.

Where possible, evidence of cohabitation should be submitted in the form of official documents, such as utility bills, bank statements, or tenancy agreements addressed jointly to both partners. If joint documents are unavailable, individual documents addressed to each party at the same residential address may also be accepted. These should cover up to the date of application, span a reasonable period of time, and come from a variety of sources.

If the couple has not lived together for very long, or at all, other forms of evidence – such as travel records, photographs, and communication logs – may also be submitted to establish the ongoing nature of the relationship. You should also provide evidence of the reasons why you have not lived together.

If the Home Office remains unconvinced by the evidence provided, and finds reasonable grounds to doubt that the relationship is genuine or subsisting, the application will be refused.

Our immigration barristers regularly advise on the types of documentary evidence that are most persuasive to the Home Office in demonstrating a genuine and subsisting relationship. We do not rely on standard checklists. Instead, we provide bespoke advice tailored to each client's individual circumstances, ensuring that every application is supported by the strongest possible evidence of a real, committed relationship.

- [What is a Genuine and Subsisting Relationship?](#)
- [Genuine and Subsisting Relationship Requirement](#)

9. UK Spouse Visa: Proving Intention to Live Together in the UK

In order to qualify for a UK Spouse Visa, UK Visas and Immigration must be satisfied that both you and your spouse intend to live together permanently in the

mutual commitment to reside together in the UK on a permanent basis. This intention must apply either immediately following the grant of the Spouse Visa or as soon as reasonably practicable thereafter.

When applying for further leave to remain or indefinite leave to remain as a spouse, the Home Office will examine your living arrangements to determine whether they are consistent with an intention to live together permanently in the UK. Time spent outside the UK will be scrutinised and should not suggest that you are habitually resident outside the UK. Any time spent outside the UK must be compatible with maintaining family life in the UK.

Acceptable reasons for temporary absences may include time spent abroad for work commitments, training, study, or holidays. However, if either you or your spouse spends the majority of your time overseas, this may give rise to concerns as to whether you genuinely intend to live together permanently in the UK. In assessing this, the Home Office will consider the duration and purpose of any absences, the frequency of travel, and whether you and your spouse travelled and resided together during time spent outside the UK.

- [Residence Requirements for Partners](#)

10. Evidence That Previous Relationships Have Ended for Spouse Visa Applications

In order to qualify for a UK Spouse Visa, UK Visas and Immigration must be satisfied that neither you nor your spouse is married to another person at the date of the application.

If either you or your spouse has previously been married, you will need to provide evidence that the prior marriage has legally ended. In the case of a divorce obtained in the UK, this must be evidenced by a decree absolute issued by a civil court. For a divorce obtained outside the UK, you must provide a legally valid document that is the equivalent of a decree absolute, recognised under the law of the country in which the divorce was granted.

If you or your spouse were previously married and that marriage has not been legally dissolved, you will not qualify for a Spouse Visa. However, you may be eligible to apply for an [Unmarried Partner Visa](#), provided you can demonstrate

that your current relationship is genuine and subsisting and that the previous relationship has broken down permanently.

- [Spouse, Partner and Family Visa Success Stories](#)
- [Top 10 Spouse Visa Extension FAQs](#)
- [Partner Visa Extension & ILR Application Top Tips](#)

11. Meeting the Financial Requirement for a UK Spouse Visa

In order to qualify for a UK Spouse Visa, you will need to satisfy the financial requirement. This is designed to demonstrate that you and your spouse can be adequately maintained in the UK without recourse to public funds.

Unless exempt, you must show that your sponsoring spouse – or you and your spouse jointly if you are already in the UK with valid leave to remain and permission to work – has a gross annual income of at least £29,000.

There is no longer a separate child element to the minimum income requirement. The same income threshold applies whether or not dependent children are included in the application.

However, if you were on this route before 11 April 2024, and are applying to extend your permission, the old income requirement continues to apply. The minimum income for a partner with no children is £18,600. This increases by £3,800 for the first child, and by an additional £2,400 per child for additional children, to a maximum of £29,000.

If your spouse is in receipt of certain specified [state benefits or entitlements](#), the financial requirement will differ. In such cases, the sponsor must instead demonstrate that they can adequately maintain and accommodate the applicant and any dependents, according to guidance published by the Department for Work and Pensions.

The financial requirement must be met at three stages of the Spouse Visa route:

- When applying for initial entry clearance as a spouse;
- When applying for further leave to remain as a spouse; and
- When applying for indefinite leave to remain as a spouse.

The Immigration Rules governing the Spouse Visa financial requirement are complex, and strict documentary evidence requirements apply. The burden is on

Accepted Income and Savings Sources for Spouse Visa Financial Requirement

You may be able to satisfy the UK Spouse Visa financial requirement through a range of permitted sources, including:

- Income from **salaried** or non-salaried employment of your sponsoring spouse (and/or yourself, if you are in the UK with permission to work);
- **Non-employment income**, such as property rental income or dividends from shares;
- **Cash savings** held by you and/or your partner in excess of £16,000, provided the savings have been held for at least six months and are under your control;
- Income from a UK or foreign state **pension**, occupational pension, or private pension of your spouse (and/or yourself, if applicable);
- Income from **self-employment**, or as a **director or employee of a specified limited company** in the UK, of your sponsoring spouse (and/or yourself, if permitted to work).

In certain cases, a **combination of the above sources of income** may be relied upon to meet the threshold, subject to specific rules about how they can be combined.

Applicants relying on cash savings alone should be aware that the level of cash savings required differs depending on whether the application is for entry clearance, an extension of stay, or **indefinite leave to remain as a spouse**. The required level of savings is calculated using a formula set out in Appendix FM.

As noted above, different considerations apply if your sponsor is in receipt of certain qualifying **state benefits or entitlements**. In such cases, adequate maintenance and accommodation must be demonstrated, rather than meeting a fixed income threshold.

In exceptional cases, where refusal of the application would result in unjustifiably harsh consequences and potentially breach Article 8 of the European Convention on Human Rights, UK Visas and Immigration may take into account **other credible and reliable sources of income, financial support or funds** available to the couple.

Our immigration barristers are experts in the Spouse Visa financial requirement and the supporting documentation required to demonstrate compliance. We

To discuss your UK Spouse Visa application with one of our immigration barristers, contact our UK Spouse visa lawyers on 0203 617 9173 or complete our enquiry form below.

12. Accommodation Rules for UK Spouse Visa Applicants

Whether you are applying for entry clearance, further leave to remain as a spouse, or indefinite leave to remain, you will need to demonstrate that there will be adequate accommodation available for you and your partner in the UK. This accommodation must be owned or occupied exclusively by you, your partner, or both of you jointly, without the need to rely on public funds. You do not need to own or occupy the whole accommodation. Renting a room in a shared house counts as exclusive occupation.

You must provide documentary evidence of the basis on which the property is owned or occupied. You will also need to show that you have a legal right to reside in the property, that it is not overcrowded in accordance with the Housing Act 1985, and that it does not contravene public health regulations.

- [The UK Family Visa Accommodation Requirement](#)
- [Meeting the Accommodation Requirement: UK Spouse or Fiance Visa](#)

13. UK Spouse Visa English Language Requirement: Tests & Exemptions

Unless exempt, as part of your Spouse Visa application you will need to satisfy the Home Office that you satisfy an English language requirement.

When applying for entry clearance as a spouse, or when switching into the Spouse Visa route from another immigration category, you will need to demonstrate English language ability to at least level A1 of the Common European Framework of Reference for Languages (CEFR). When applying for further leave to remain as a spouse, a higher level of English language ability – at least CEFR level A2 – is required. This increases further to at least CEFR B1 for indefinite leave to remain

You can meet the Spouse Visa English language requirement in one of the following ways:

- **By passing a test:** You have passed an approved English language test in speaking and listening at or above the required CEFR level, with a provider and test centre approved by the Home Office (see the list of [Approved Secure English Language Tests and Test Centres](#));
- **By academic qualification:** You hold a degree that meets the following criteria:
 - If awarded in the UK: a Bachelor's, Master's or PhD degree will meet the requirement;
 - If awarded outside the UK: the qualification must be confirmed by Ecctis (formerly UK NARIC) as meeting or exceeding the recognised standard of a UK Bachelor's, Master's or PhD, and Ecctis must also confirm that the degree was taught or researched in English at or above the required CEFR level.

You may be exempt from the English language requirement if:

- You are aged 65 or over at the date of application;
- You have a physical or mental condition that prevents you from meeting the requirement;
- There are exceptional circumstances which prevent you from meeting the requirement prior to entry to the UK.

If you do not meet the English language requirement, and you are not exempt, your Spouse Visa application will be refused.

- [Family & Partner Visa English Language Requirement](#)

14. UK Spouse Visa Exceptions: Human Rights and Exceptional Circumstances

If you are unable to meet all of the requirements for a UK Spouse Visa under Appendix FM – for example, the financial requirement or the immigration status requirement – you may still be granted entry clearance or leave to remain on human rights grounds, where refusal would breach your rights under Article 8 of the European Convention on Human Rights (ECHR) (the right to respect for private and family life).

You may be able to apply on this basis if:

- You have a British or Irish citizen child in the UK;

meaning very significant difficulties which would be faced by you and your partner in continuing your family life together outside the UK, which could not be overcome or would entail very serious hardship;

- Refusal of your application would otherwise result in unjustifiably harsh consequences for you, your partner, or a relevant child, such that it would constitute a disproportionate interference with your Article 8 rights.

Applications relying on these circumstances are assessed under the exceptional circumstances provisions of Appendix FM, with reference to relevant case law and Home Office guidance.

- [Exceptional Circumstances in Appendix FM Family Visa Applications](#)
- [Exceptions to Appendix FM Partner & Parent Visa Requirements](#)

15. Applying for a Spouse Visa Inside or Outside the UK

The appropriate place to apply for a UK Spouse Visa depends on your current immigration status and where you are located at the time of application. If you are outside the UK, you must apply for entry clearance as a spouse from the country in which you are lawfully resident. This does not mean you must be a citizen of that country, but you must be living there legally and not simply visiting.

If you are already in the UK, you may be eligible to apply to switch to a Spouse Visa from within the country, provided you hold a visa or immigration status that permits a stay of more than six months. However, if you are in the UK on a visa that is valid for six months or less, such as a [Standard Visitor Visa](#), you will not be permitted to apply from inside the UK. In this case, you must leave the UK and submit your Spouse Visa application from abroad.

It is important to note that there was previously a temporary Covid-19 concession, which previously allowed visitor visa holders to apply for a Spouse Visa from within the UK. However, this is no longer possible.

16. Switching to a UK Spouse Visa From Another Immigration Route

If you are already in the UK, it may be possible to switch into the Spouse Visa route from another immigration category. The following are commonly eligible routes:

- Fiancé(e) Visa: May switch after marriage within 6-month grant

are met

You cannot switch into the Spouse route from within the UK if you are:

- On a Visitor Visa; or
- In the UK with leave granted for less than six months, unless as a fiancé(e) or in a permitted exceptional case.

Switching applications must still satisfy all substantive requirements, including the financial threshold and English language requirement. A new biometric appointment will be required, and you may apply using the Super Priority Service for faster decision-making.

17. How to Include Children in a UK Spouse Visa Application

If you and your spouse have children, they may be eligible to apply for a visa to join or remain with you in the UK as dependents. A child can be included in your application or apply separately, provided:

- They are under 18 years of age at the time of application;
- They are not leading an independent life, married, or living away from the family unit;
- You and your spouse will have sole responsibility or shared parental responsibility for them;
- Adequate accommodation exists for the child;
- The family's financial circumstances can meet the maintenance requirement (although note: as set out above, as of April 2024, there is no separate financial threshold for children).

Each child will need to submit a separate application and pay the relevant fee. The visa will usually be granted for the same duration as the parent with the Spouse Visa.

18. UK Spouse Visa Application Process: Online Form & Supporting Documents

Spouse Visa applications must be submitted online, and the process varies slightly depending on whether the applicant is applying from within the UK or from

Prior to submitting a Spouse Visa application, it is essential to confirm that the appropriate form is being used. Applicants should also prepare all supporting documents in accordance with the requirements set out by the Home Office. Particular care should be taken with documents that must be dated no earlier than 28 days before the online application is submitted, as failing to meet this requirement can lead to delays or refusals.

Although most applicants are now required to upload their supporting documents digitally, the procedure for document submission can vary depending on the country from which the application is being made. It is therefore necessary to check the latest guidance for the relevant visa application centre at the time of applying.

Given the complexity of the rules and the potential consequences of submitting an incorrect or incomplete application, it is strongly recommended that applicants seek legal advice to ensure that all Spouse Visa requirements are met in full.

19. Checklist of Documents for a UK Spouse Visa Application

The most common reason for a Spouse Visa application to be refused is because the applicant fails to include sufficient documentary evidence in support of their application.

The Immigration Rules contain strict requirements in terms of the documents that must be submitted in support of a UK Spouse Visa application. Every case is different and the required supporting documents for a Spouse Visa application will vary from case to case.

Advice from an immigration lawyer will ensure that the documents provided are appropriate for individual circumstances, as automatically generated document checklists may not be applicable to every case.

If a required document is not provided, is in the wrong format or does not contain all mandatory information then the application for a Spouse Visa may be refused. Appeals can take many months to be determined and the outcome may be uncertain. A fresh application will involve further cost and additional delay.

Our immigration barristers provide expert advice to Spouse Visa applicants in relation to the documents required for a successful Spouse Visa application and

20. Home Office Fees for UK Spouse Visa Applications

The **Home Office application fee** for a UK Spouse Visa application submitted outside the UK is currently £1,938. The Home Office application fee to switch into the spouse category from within the UK or extend stay as a spouse is currently £1,321. Additional fees will apply if you use the Priority or Super Priority Service.

21. Spouse Visa UK Processing Times and Decision Waiting Times

The current Home Office processing time for a Spouse Visa application submitted outside the UK is 12 weeks. If you apply via the Priority Service then you will usually receive a decision within 30 working days. There is no Super Priority Service for out-of-country applications.

- **Can I Visit the UK While My Partner Visa Is Being Processed?**

Applications to switch into or extend as a spouse submitted from within the UK are currently being decided by the Home Office within 8 weeks. However, if you do not satisfy the minimum income or English language requirements then it may take about 12 months to receive a decision.

There is no 5 working day Priority Service for in-country spouse applications, but if you apply via the Super Priority Service then you should receive a decision by the end of the next working day.

22. How Long Is a UK Spouse Visa Valid For?

If your application for a UK Spouse Visa is successful, your spouse visa will be valid for 33 months initially. If you apply for leave to remain in the UK as a spouse then you will be granted leave valid for 30 months.

Before your initial grant of leave expires, you will need to apply to UK Visas and Immigration to extend your stay. If your application for further leave to remain as a spouse is successful then you will be granted further leave to remain for a period of 30 months.

After spending 5 years (60 months) in the UK as a spouse, you will be eligible to apply for indefinite leave to remain.

23. Can Spouse Visa Holders Work in the UK?

Refused and How to Avoid Them

Spouse Visa applications are frequently refused due to avoidable errors. Some of the most common reasons include:

- **Insufficient Evidence of a Genuine and Subsisting Relationship:** Applicants fail to provide adequate proof of cohabitation, communication, or shared responsibilities.
- **Failure to Meet the Financial Requirement:** Errors include relying on income sources that do not qualify, not meeting the £29,000 threshold, or submitting incomplete documents (e.g., missing payslips or incorrect bank statements).
- **Inadequate Documentary Evidence:** Supporting documents are not provided in the correct format or fail to meet the Immigration Rules' specifications.
- **Marriage Not Recognised in the UK:** This can occur where the marriage was not properly registered overseas or is deemed polygamous or within a prohibited degree of relationship.
- **English Language Requirement Not Met:** Failing to submit valid English language test results or relying on unrecognised qualifications.
- **Doubts Over Intention to Live Together in the UK:** Inconsistent evidence or prolonged overseas absences may raise questions.

To reduce the risk of refusal, applicants are strongly advised to seek professional legal advice and have their application reviewed before submission. A carefully prepared application, supported by tailored evidence, significantly improves the likelihood of a successful outcome.

25. Spouse Visa Refused: Appeal and Reapplication Options

If your UK Spouse Visa application is refused, you will usually have a **right of appeal**, as these applications are treated as human rights claims.

Appeals are heard by the **First-tier Tribunal (Immigration and Asylum Chamber)**:

- If you are in the UK, both you and your spouse may attend and give evidence;

- If you are overseas, your spouse can attend in the UK. You can submit a written statement and evidence. In some cases, you may give evidence remotely.

immigration lawyer before appealing against a decision to refuse a Spouse Visa application.

26. How to Apply for ILR After 5 Years on a UK Spouse Visa

If your Spouse Visa application is successful, you will initially be granted permission to enter the UK for a period of two and a half years (plus an additional three months if applying for entry clearance). You will need to make an extension application before the expiry of your leave. If your spouse extension application is successful then you will be granted further leave for a period of two and a half years.

After spending 5 years (60 months) in the UK on the Spouse Visa route, you may be eligible to apply for indefinite leave to remain in the UK.

In order to qualify for indefinite leave to remain as a spouse you will need to demonstrate, in addition to the above requirements, that:

- Since you have been in the spouse category you have lived together with your spouse in the UK or there is good reason, consistent with a continuing intention to live together permanently in the UK, for any period when you have not done so;
- You meet the higher CEFR Level B1 English Language requirement that applies to settlement applications;
- You have passed the [Life in the UK test](#) (unless exempt).

If you make an application for indefinite leave to remain as a spouse but do not satisfy the above requirements, UK Visas and Immigration will go on to consider if you meet the requirements for a further extension of stay as a spouse.

27. When Can Spouse Visa Holders Apply for a UK Passport?

After entering the Spouse Visa route, you will typically be granted an initial period of 30 months (or 33 months if applying from overseas). You will then need to

extend your Spouse Visa for a further 30 months before qualifying for Indefinite Leave to Remain (ILR) under the five-year route to settlement

may count toward the ten-year period if you switch partway through.

Once you hold ILR, you may apply to [naturalise as a British citizen](#). If you are married to a British citizen, you can apply immediately. If not, you must wait for 12 months after obtaining ILR.

28. UK Spouse Visa to British Citizenship: Application Timeline Explained

This route to settlement and citizenship unfolds over several stages:

- Initial Application – Entry Clearance or Leave to Remain
 - Duration: 33 months (entry clearance) or 30 months (in-country)
 - Must meet all requirements including financial, relationship, accommodation, English language, and immigration status if applicable.
- Spouse Visa Extension
 - When to Apply: Before initial leave expires
 - Duration: Further 30 months
 - Must still meet all requirements including higher English language level (A2)
- Indefinite Leave to Remain (ILR)
 - Eligible After: 60 months (5 years) in the Spouse route but before current leave expires
 - Must meet residence requirement, pass Life in the UK Test, and demonstrate English at B1 level
- British Citizenship
 - If married to a British citizen: Apply immediately after obtaining ILR
 - If not married to a British citizen: Wait 12 months after ILR before applying

29. Marriage in the UK: Choosing the Right Visa Route

If you are planning to get married in the UK, it is important to select the correct visa route based on your circumstances and future intentions. There are two main visa options available for individuals who wish to marry in the UK: the [Marriage Visitor Visa](#) and the [Fiancé\(e\) Visa](#).

The **Marriage Visitor Visa** is intended for individuals who wish to travel to the UK to marry or to give notice of their intention to marry. This visa is appropriate for

such as the UK Spouse Visa, while in the UK.

In contrast, the **Fiancé(e) Visa** is designed for engaged partners of British or Irish citizens, or individuals who hold indefinite leave to remain, refugee status, humanitarian protection, or limited leave under Appendix EU or Appendix ECAA. This visa allows entry to the UK for the purpose of getting married within six months. After the marriage has taken place, the visa holder can apply from within the UK to switch to the UK Spouse Visa route, which may lead to settlement.

The visa you need will depend largely on whether you intend to remain in the UK after the marriage. If you plan to return to your home country, the Marriage Visitor Visa may be suitable. However, if your intention is to live in the UK with your spouse following the wedding, the Fiancé(e) Visa is likely to be the most appropriate option.

30. Spouse Visa FAQs

What is a UK Spouse Visa and who can apply?



What are the financial requirements for a UK Spouse Visa?



What documents are required for a UK Spouse Visa?



How long does it take to process a UK Spouse Visa application?



Can I switch to a UK Spouse Visa from within the UK?



What are the common reasons UK Spouse Visa applications are refused?



How long is a UK Spouse Visa valid and can it lead to settlement?



Can UK Spouse Visa holders work in the UK?





Can children be included in a UK Spouse Visa application?

31. How Our Immigration Barristers Can Help

Applying for a UK Spouse Visa is often legally complex, evidentially demanding, and personally significant. At Richmond Chambers, our specialist immigration barristers provide clear advice, detailed application preparation, and expert legal representation to support spouses throughout every stage of the immigration process.

Spouse Visa Advice and Representation

Whether you are applying for entry clearance, leave to remain, or indefinite leave to remain as a spouse, we can:

- Assess your eligibility under the Immigration Rules and advise on your prospects of success;
- Assist with preparing a fully evidenced application that addresses the relationship, accommodation, financial and English language requirements;
- Identify and resolve evidential gaps, particularly where the financial requirement is complex or falls outside standard categories;
- Submit a carefully presented application, supported by persuasive legal representations tailored to your case.

Our approach is strategic and thorough, with the aim of securing a successful outcome while reducing the risk of delay, uncertainty or refusal.

Support With Complex Financial Circumstances

We regularly assist applicants who face difficulties meeting the financial requirement, including:

- Combining income from multiple sources such as employment, self-employment, dividends, or pensions;
- Relying on savings held in the UK or overseas;
- Proving financial support in cases involving non-traditional or overseas employment.



Our barristers provide tailored advice to ensure full compliance with Appendix FM-SE and minimise the risk of refusal on evidential grounds.

We also advise and assist with:

- Extension applications before the expiry of your initial grant of leave;
- Applications for indefinite leave to remain (ILR) after five years in the Spouse route;
- Switching into the Spouse route from another immigration category, where permitted under the Rules.

Appeals Against Spouse Visa Refusals

If your UK Spouse Visa application has been refused, our immigration barristers can:

- Review the refusal decision and advise on the merits of an appeal to the First-tier Tribunal;
- Prepare detailed grounds of appeal and supporting legal submissions;
- Assist with the preparation of evidence, including witness statements and appeal bundles;
- Represent you and your partner at your appeal hearing before the Immigration and Asylum Chamber.

We have a strong track record of success in challenging refusals, and provide calm, strategic guidance throughout the appeal process.

Whatever stage you are at in your UK Spouse Visa journey, Richmond Chambers offers clear, dependable legal advice and high-quality representation from start to finish.

32. Contact Richmond Chambers Immigration Barristers

At Richmond Chambers, we pride ourselves on being approachable, responsive, and proactive in understanding and meeting our clients' needs. We are a highly driven team, committed to delivering clear and reliable immigration advice as part of a professional and friendly service.

To speak with one of our immigration barristers about your Spouse Visa application or appeal, please call us on +44 (0)20 3617 9173 or complete the online enquiry form below.



Switching into the Spouse Route



Spouse Visa Extension Applications



Indefinite Leave to Remain (ILR) After 5 Years



Appeals Against Spouse Visa Refusals



Complex Financial Requirement Cases



Proving a Genuine and Subsisting Relationship



Exceptional Circumstances & Human Rights Applications



Spouse Visa Compliance and Work Rights Advice



Children as Dependants in Spouse Visa Applications



WHAT CAN WE **HELP YOU WITH?**

To discuss your Spouse Visa application with one of our immigration barristers, contact our personal immigration team on 0203 617 9173 or complete our enquiry form below.

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Client Success: Securing ILR After Five Years on the Spouse

06 Jan 2026

Our client, represented by immigration barrister Anna Bregstein, approached Richmond Chambers for assistance with her application for Indefinite Leave to Remain (ILR) after completing 60 months in the UK as the spouse of a British citizen.



Spouse & Partner Visa Financial Requirement: Sponsor Not Working

By Arya Chaudhary – Legal Associate
29 Dec 2025

If your Sponsor is not working, perhaps because he or she is retired, it may initially seem difficult to meet the UK spouse or partner visa financial requirement in Appendix FM, which currently requires a minimum income of £29,000 per year.



Residence Requirements for Partners

By Isabella Reynard – Immigration Barrister
10 Dec 2025

Unlike most visa routes, partner visas (including those meeting the definition of partner as an unmarried partner or spouse) do not have any specific residence requirements or prescribed limits on the number of days of absences from the UK.



More



immigration barristers

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RICHMOND CHAMBERS LLP

LONDON OFFICE

Richmond Chambers LLP
Seven Henrietta Street
Covent Garden
London
WC2E 8PS

T / +44 0203 617 9173

E / info@richmondchambers.com



MONTREUX OFFICE

T / +41 21 588 07 70

E / info@richmondchambers.ch

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